

the Act should be silent as to what the trustees on their part ought to do in the interest of the remaindermen when they receive a notice. No doubt if it comes to their knowledge that the tenant for life is contemplating or attempting to commit a fraud—as, for instance, by selling or leasing the property at a gross undervalue under some secret arrangement by which he is to derive a personal benefit, it would be their duty to come to the Court and ask for an injunction to restrain the sale or lease (*a*). But if the dealing is not on the face of it fraudulent or improper, there is no obligation on the trustees to inquire into or take any steps in the matter; and in any case they are, by sect. 42, expressly protected from any liability for giving any consent, or for not making, bringing, taking, or doing any such application, action, proceeding, or thing as they might make, bring, take or do.

On the whole, it seems that the protection afforded to the remaindermen against an improper exercise by the tenant for life of his powers by the appointment of trustees of the settlement, coupled with notice to them under sect. 45, is of a very shadowy nature, and in the majority of cases is of no practical value.

[*560] * 15. **Where consent of trustees necessary to exercise of powers.**—There are however some powers which the tenant for life can only put in force either with the consent of the trustees or under an order of the Court, and as to these the trustees before giving their consent must exercise their discretion on behalf of all persons interested.

Sale of mansion house.—**Timber.**—Thus under sect. 15, the principal mansion house on any settled land, and the demesnes thereof, and other lands usually occupied therewith, cannot be sold or leased by the tenant for life without such consent or order (*a*), and under sect. 35, a tenant for

(*a*) See *Wheelwright v. Walker*, 23 Ch. D. 752, 762.

(*a*) The Court will sanction a sale even though the testator has expressly directed that the mansion house is to be kept up as a place of residence for the person for the time being entitled to the possession thereof under his will, and that the heirlooms shall at

all times be kept in the mansion house, if a proper case for sale is made out, but the sale will not be sanctioned without proper directions being given for the disposal of the heirlooms. They may, however, be sold under sect. 37, if the tenant for life so desires and the Court approves. *Re Brown's Will*, 27 Ch. D. 179.